

The Indian Wireless Telegraphy Act, 1933

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Union of India - Act

The Indian Wireless Telegraphy Act, 1933

UNION OF INDIA

India

The Indian Wireless Telegraphy Act, 1933

Act 17 of 1933

Published on 11 September 1933

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The Indian Wireless Telegraphy Act, 1933

(17 of 1933)

097.

Statement of Objects and Reasons.-An important source of revenue to the Indian State Broadcasting Service is the fees on licenses for wireless apparatus. These licenses are issued under the Indian Telegraph Act which, however, only gives power to control establishment, maintenance and working of such apparatus in British India. The detection of unlicensed apparatus and the successful prosecution of offenders is therefore difficult in practice as it is first necessary to locate unlicensed apparatus and then to prove that it has actually been established, maintained and worked. It is believed that the revenue lost at present owing to the use of unlicensed wireless apparatus is considerable, thus, adversely affecting the financial position of the Indian State Broadcasting Service. It is now proposed to remedy this state of affairs by legislation to prohibit the possession without license of wireless apparatus as distinct from the

establishment, maintenance and working of such apparatus, and the present Bill has been drafted with this object. Amendment Act 15 of 1961-Statement of Objects and Reasons.-With the introduction of television in India, it has become necessary to licence the possession and working of television apparatus. Although the definition of "telegraph" in the Indian Telegraph Act, 1885 and the definition of "wireless communication" in the Indian Wireless Telegraphy Act, 1933 appear to be wide enough to cover transmission and reception of visual images by television, it is considered desirable to place the matter beyond controversy by a suitable amendment of these two Acts. Opportunity has also been taken to amend section 7 of the Indian Telegraph Act, 1885 so as to take power to prescribe by rules the qualifications for persons employed in establishing, maintaining or working wireless telegraph systems, the examinations to be passed by them and the fees to be charged for admission, to such examinations.

[11th September, 1933]

An Act to regulate the possession of wireless telegraphy apparatus.

Whereas it is expedient to regulate the possession of wireless telegraphy apparatus in India; It is hereby enacted as follows:

1.

Short title, extent and commencement .(1) This Act may be called The Indian Wireless Telegraphy Act , 1933.

(2)

It extends to the whole of India [* * *].

(3)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

2.

Definitions .In this Act, unless there is anything repugnant in the subject or context,

(1)

wireless communication means any transmission, emission or reception of signs, signals, writing, images and sounds, or intelligence of any nature by means of electricity, magnetism, or Radio waves or Hertzian waves, without the use of wires or other continuous electrical conductors between the transmitting and the receiving apparatus.

Explanation. Radio waves or Hertzian waves means electromagnetic waves of frequencies lower than 3,000 gigacycles per second propagated in space without artificial guide;

(2)

wireless telegraphy apparatus means any apparatus, appliance, instrument or material used or capable of use in wireless communication, and includes any article determined by rule made under section 10 to be wireless telegraphy apparatus, but does not include any such apparatus, appliance, instrument or material commonly used for other electrical purposes, unless it has been specially designed or adapted for wireless communication or forms part of some apparatus, appliance, instrument or material specially so designed or adapted, nor any article determined by rule made under section 10 not to be wireless telegraphy apparatus; [*]

(2-A) wireless transmitter means any apparatus, appliance, instrument or material used or capable of use for transmission or emission of wireless communication;

(3)

prescribed means prescribed by rules made under section 10.

3.

Prohibition of possession of wireless telegraphy apparatus without licence .Save as provided by section 4, no person shall possess wireless telegraphy apparatus except under and in accordance with a licence issued under this Act.

4.

Power of Central Government to exempt persons from provisions of the Act .The Central Government may by rules made under this Act exempt any person or any class of persons from the provisions of this Act either generally or subject to prescribed conditions, or in respect of specified wireless telegraphy apparatus.

5.

Licences .The telegraphy authority constituted under the Indian Telegraphy Act, 1885 (

13 of 1885

), shall be the authority competent to issue licences to possess wireless telegraphy apparatus under this Act, and may issue licences in such manner, on such conditions and subject to such payments as may be prescribed.

6.

Offence and penalty (1) Whoever possesses any wireless telegraphy apparatus, other than a wireless transmitter, in contravention of the provisions of section 3 shall be punished, in the case of the first offence, with fine which may extend to one hundred rupees, and, in the case of a second or subsequent offence, with fine which may extend to two hundred and fifty rupees.

(1-A) Whoever possesses any wireless transmitter in contravention of the provisions of section 3 shall be punished with imprisonment which may extend to three years, or with fine which may extend to one thousand rupees, or with both.

(2)

For the purposes of this section a Court may presume that a person possesses wireless telegraphy apparatus if such apparatus is under his ostensible charge, or is located in any premises or place over which he has effective control.

(3)

If in the trial of an offence under this section the accused is convicted the Court shall decide whether any apparatus in respect of which an offence has been committed should be confiscated, and, if it so decides, may order confiscation accordingly.

7.

Power of search Any officer specially empowered by the Central Government in this behalf may search any building, vessel or place in which he has reason to believe that any wireless telegraphy apparatus, in respect of which an offence punishable under section 6 has been committed, is kept or concealed, and take possession thereof.

8.

Apparatus confiscated or having no owner to be property of Central Government .All wireless telegraphy apparatus confiscated under the provision of sub-section (3) of section 6, and all wireless telegraphy apparatus having no ostensible owner shall be the property of the Central Government.

9.

Power of Court to direct payment of fines to prescribed authority .[Ceased to have effect by A.O. 1937 and repealed by the Repealing and Amending Act, 1940 (32 of 1940), section 2 and Schedule I.]

10.

Power of Central Government to make rules .(1) The Central Government may, by notification in the Official Gazette, make rules for the purpose of carrying into effect the provisions of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for

(i)

determining that any article or class of article shall be or shall not be wireless telegraphy apparatus for the purposes of this Act;

(ii)

the exemption of persons or classes of persons under section 4 from the provisions of this Act;

(iii)

the manner of and the conditions governing the issue, renewal, suspension and cancellation of licences, the form of licences and the payments to be made for the issue and renewal of licences;

(iv)

the maintenance of records containing details of the acquisition and disposal by sale or otherwise of wireless telegraphy apparatus possessed by dealers in wireless telegraphy apparatus;

(v)

the conditions governing the sale of wireless telegraphy apparatus by dealers in and manufacturers of such apparatus;

[*]

[* * *]

(3)

In making a rule under this section the Central Government may direct that a breach of it shall be punishable with fine which may extend to one hundred rupees.

(4)

Every rule made under this section shall be laid as soon as may be after it is made before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions

aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

11.

Saving of Indian Telegraph Act, 1885 .Nothing in this Act contained shall authorise the doing of anything prohibited under the Indian Telegraphy Act, 1885 (

13 of 1885

), and no licence issued under this Act shall authorise any person to do anything for the doing of which a licence or permission under the Indian Telegraphy Act, 1885 (

13 of 1885

), is necessary.

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